



Origin – Equity Stake in Kraken

MN-20011

Phase 1 Determination

Acquisition may be put into effect

20 April 2026

1. Determination and statement of reasons

Notified acquisition	Origin Energy International Holdings Pty Ltd (a wholly owned subsidiary of Origin Energy Limited) (Origin) is participating in a series of related transactions which are being effected to achieve the spin off of the Kraken technology business, operated by Kraken Technologies Limited and its related companies (Kraken), from Octopus Energy Group Limited (OEGL). Origin will maintain its existing economic interest in Kraken (which is through Origin's interest in OEGL) by acquiring Kraken shares from another existing shareholder and being issued with an additional equity interest in Kraken in exchange for agreeing to remove and irrevocably waive its current exclusivity to the Kraken platform in Australia (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Origin Energy International Holdings Pty Ltd, is a wholly owned subsidiary of Origin Energy Limited. Origin Energy Limited is an ASX-listed integrated energy company which, relevantly in this context, engages in the retail supply of electricity and gas as well as broadband services in Australia. Origin has an existing indirect interest in Kraken through its existing direct interest in OEGL. In substance, the Acquisition maintains Origin's economic interest in Kraken and OEGL. The target, Kraken, is a technology provider, wholly owned by OEGL, that develops and licenses a proprietary retail and operations platform, called "the Kraken platform". The platform is used by utility providers globally to manage billing, customer service, distributed energy resources and operational processes.
Relationship between the parties	There is a vertical relationship between Origin's energy retailing and broadband services businesses, and Kraken's consumer relationship management (CRM) and billing system.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In

	reaching its decision, and based on the material before it, the ACCC makes the following findings. • Origin would be unlikely to have the ability and incentive to foreclose rivals' access to customer service software services (including CRM and billing services) or access confidential information of competitors given there are sufficient alternative suppliers of these services in Australia and internationally. • The substantive change to Origin's interest in Kraken through the Acquisition is minimal, meaning there is no meaningful increase to Origin's ability or incentive to engage in the above conduct.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Philip Williams pursuant to a delegation under section 25(1) of the Act